

September 8, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14390
(SECOND REVISION)

EXPIRATION DATE: January 31, 2007

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Korean Air Lines Co., Ltd.
Los Angeles, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time one-way transportation in commerce of certain Division 1.1D and 1.1J explosives which are forbidden for transportation by cargo aircraft only. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. This special permit does not grant authority to use foreign controlled airspace or airports outside the United States. The authorization for international transportation of the explosives by Korean Air Lines aircraft is set forth in United States Competent Authority Approval CA2006080020, issued by the Office of Hazardous Materials Special Permits and Approvals.
 - d. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.11(c) in that an explosive that is forbidden for transportation by aircraft under the HMR may not be transported under the provisions of the International Civil Aviation Organization's (ICAO) Technical Instructions; § 172.101 Table, Column (9B),

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§ 172.204(c)(3), § 173.27(b)(2)(3) and § 175.30(a)(1) in that the explosives listed in paragraph 6 are forbidden by cargo aircraft only, except as provided herein.

5. BASIS: This emergency special permit is based on Korean Air Lines application dated August 7, 2006 submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic impact.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Bombs, with bursting charge	1.1D	UN0034	II
Boosters, without detonator	1.1D	UN0042	II
Rockets, liquid fueled with bursting charge	1.1J	UN0397	II
Warheads, rocket with bursting charge	1.1D	UN0286	II

7. SAFETY CONTROL MEASURES:

PACKAGING - As prescribed in § 173.62.

a. Authorized explosives. Division 1.1D warheads, (EX-1993030304), Division 1.1D boosters, (EX-1987110509, EX-1988060649), Division 1.1D bombs (EX-1988030463), and Division 1.1J rockets, (EX-1987090946A) as identified in Korean Air Lines application on file with the Office of Hazardous Materials Special Permits and Approvals (OHMPSA) may be accepted and transported in cargo aircraft only subject to the conditions stated herein.

b. Authorized aircraft. The aircraft must be owned and operated by Korean Air Lines and must be authorized by a FAA operations certificate.

c. Flight Origination. This special permit authorizes the one-time, one-way cargo-only aircraft transportation for export only from Travis Air Force Base, California to Pusan, Korea.

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d. Operations manual. Operations must be conducted in accordance with conditions and limitations specified in the certificate holder's operations manual accepted and approved by the FAA.

e. Maximum weight. Not more than 35,000 pounds total net weight of explosives may be carried in the aircraft.

f. Authorized persons aboard aircraft. No person other than a required flight crewmember, an FAA inspector, the shipper or consignee of the material or a representative of the shipper or consignee so designated in writing, or person necessary for handling the material may be carried on the aircraft.

g. Advance Notice of FAA Regional Dangerous Goods Manager. The operator of the aircraft must notify the regional Dangerous Goods Manager in the region where the flight will originate. This notification must be given at least 72 hours in advance of plans to operate under the special permit, unless prior arrangements have been made with the cognizant Regional Dangerous Goods Manager. The notification must include the point of departure, intermediate stops, destination(s), and a loading and departure schedule. If a flight schedule deviates more than four hours from the originally scheduled departure time, the operator of the aircraft must notify the cognizant Regional Dangerous Goods Manager. Alternate notification procedures may be established subject to the written approval of the cognizant Regional Dangerous Goods Manager.

h. Advance permission from airport. The operator of the aircraft must have advance permission from Travis Air Force Base where the material is to be loaded. When the destination is changed after departure because of weather or other unforeseen circumstances, permission from the owner or operator of the alternate airport must be obtained as soon as practicable.

i. Flight plan. The operator of the aircraft must include the following information in the "Remarks" section of each flight plan when the provisions of this special permit are exercised:

- (1) The classification of each hazardous material aboard the aircraft.

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(2) The net weight of each class of hazardous material aboard the aircraft.

j. Loading and unloading. Loading and unloading operations under this special permit must comply with the following:

(1) The loading and unloading of the aircraft must be conducted at a safe distance from heavily populated areas and from any place of human abode or assembly. However, at an airport where the airport owner or operator or authorized representative thereof has designated a specific location for loading or unloading, the explosives may not be loaded or unloaded at any other location.

(2) Carriage of explosives under this special permit is subject to the same limitations and conditions specified for their transportation by motor vehicle in § 177.835(g) and § 177.848.

(3) The loading arrangements to be used aboard the aircraft for the materials listed in paragraph 6, must be identified in the operator's operating specifications and have been accepted and approved in writing by an FAA-assigned Principal Operations Inspector in accordance with the operator's approved weight and balance program.

(4) During loading or unloading, no person may smoke or carry a lighted cigarette, cigar or pipe, or operate any device capable of causing an open flame or spark within 50 feet of the aircraft.

(5) No fueling operations of the aircraft carried out during loading and unloading of the explosives.

k. Requirements during operation of aircraft. Operation of the aircraft during takeoff, en route, and landing must be conducted at a safe distance from heavily populated areas.

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(1) Before movement of the aircraft, prior to take-off, and prior to entering an airport traffic area, the pilot of the aircraft must notify the control tower of the class(es) of explosive(s) on board, and request that this information be released to the appropriate airport officials. This notification must be either communicated by radio transmission or facsimile transmission.

(2) In the event of a diversion from the scheduled route of flight to an airport that was not previously scheduled, the flight crew must notify the control tower during the approach phase of the amount of class of explosives on board and request this information be relayed to the appropriate airport officials. This notification must be either communicated by radio transmission or facsimile transmission. For airports without control towers, this communication must be made to the Flight Service Station nearest the airport of intended landing.

(3) When under radar control during the approach and landing phase, the pilot must request appropriate vectors so as to avoid heavily populated areas.

(4) Whenever explosives are on board the aircraft, no person on the aircraft may smoke, or carry a lighted cigarette, cigar, or pipe, or operate any device capable of causing an open flame or spark.

1. Pilot requirements. The operator of the aircraft must ensure the following with respect to pilots of aircraft operating under this special permit:

(1) A minimum of two pilots is required aboard any multi-engine aircraft carrying explosives under this special permit.

(2) Each pilot of an aircraft being operated under this special permit must have received formal training on the requirements of 49 CFR Parts 170-178 that are applicable to his duties and be thoroughly familiar with the specific requirements of this special permit.

m. Attendance of explosives. The explosives must be attended at all times they are in the possession of the operator (from the time of receipt from the consignor until time of receipt by the consignee) unless placed in an explosive storage magazine that is approved by the Federal, State or local authority or at a location on a military installation designated by appropriate military authorities.

8. SPECIAL PROVISIONS.

The aircraft operator must maintain permanent records of the flight authorized under this special permit. This record must be made available at its principal business office to representatives of the Federal Aviation Administration and submitted to the Associate Administrator for Hazardous Materials Safety (AAHMS) upon request. The record for the flight must include:

- (1) Name of the shipper(s).
- (2) Name of the consignee(s).
- (3) Origin airport.
- (4) En route airport(s).
- (5) Destination airport.
- (6) Shipping name and class of each explosive.
- (7) Net weight of each explosive.
- (8) Name of each pilot and any other person aboard the aircraft.
- (9) Registration number of the aircraft.
- (10) Name of the individual representing the owner or operator of each manned airport who granted advance permission for the aircraft to land or take-off while it was being operated under this special permit.

The record required by this paragraph must be maintained current to within 72 hours of the flight under this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard the aircraft used to transport the explosives covered by this special permit.

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11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5105 et seq.
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable. In addition, the air carrier must comply with all cargo security mandates as required by the air carrier's applicable TSA approved security program and associated security directives.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemptions, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS. Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of

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this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Fowler". The signature is fluid and cursive, with a large loop at the end.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah